

AIESEC INDIA COMPENDIUM

***Sub-document
Code of Ethics***

This sub - document defines a **sound ethical state for AIESEC** in India and the **basic ethical principles to abide by as a member of the entity**. In the case of these principles not being adhered to, it specifies the exact procedure to raise the issue in the rightful way to the Ethics Subcommittee, defines implications for the issues and ensures sound whistleblowing mechanisms to safeguard the interest of all the members.

1. Independence

We shall always be able to act in a manner consistent with The AIESEC Way, without limitation from external pressures. Our membership should be involved in our major decision-making processes.

1.1. Political interferences - We aim to be **politically independent**: no partnership shall commit us to a direct political agenda. We will not allow any political movements to influence or interfere with the political neutrality that is crucial to the nature of AIESEC. **Our governance, programs and policies shall be non- partisan, independent of specific governments, political parties.** In addition, we will diversify our sources of income so as not to become dependent on any one source that could compromise our AIESEC Way.

1.2. “Political agenda has been defined as supporting a political agenda in a country. E.g. Being involved in party politics etc.”

2. Partnerships and Ethical fund raising

AIESEC seeks to partner with organizations that can assist us in developing characteristics in individuals that we believe are critical in creating change agents. We seek to work in genuine **partnership with local communities, NGOs, companies and other organizations with awareness of sustainable development responding to local needs.**

We shall not partner with organizations that directly promote war or violence. We shall not partner with organizations that discriminate on the basis of race, colour, sex, sexual orientation, creed, religion, and national or ethnic origin.

We shall not partner with organizations that negatively affect our image in the external environment. We recognize that **organizational integrity extends to ensuring that our partners also meet the highest standards of organizations or persons who are not involved in illegal or unethical practices.** For example, companies engaged in the manufacture of tobacco and arms, as stated in AIESEC’s international compendium.

2.1. Use of Donations- In raising funds, we will accurately describe our activities and needs. **Any Kind of Monetary Donation and Crowd Fundraising activities on any AIESEC grounds or events is prohibited,** Process of Contract signing to be followed for other fundraising activities.

2.2. Gifts in kind- Some **donations may be given as goods or services.** To retain our effectiveness and independence, we will: record **and publish details of all major institutional gifts and gifts-in-kind;** clearly describe the valuation and auditing methods used; and ensure that these gifts contribute towards our mission.

3. Relation with our stakeholders

3.1. Relations with Entities- We consult actively with our members and Entities in the development and implementation of policies and activities that have an impact on them.

3.2. Relations within teams and committees -We treat each other with respect and consideration. We communicate and consult with each other openly and collegially and in a manner that assists each of us to fulfil our duties and responsibilities faithfully and efficiently. We undertake to ensure adequate consultation with any member before making any decision, which may impact that member.

3.3. Relations with external stakeholders - We commit to keeping our promises towards our stakeholders keeping in mind our value of excellence.

4. Equity and Diversity

We value, respect and encourage diversity, and seek to be impartial and non-discriminatory in all our activities. To this end, each Entity will have policies that promote diversity, gender equality and balance, impartiality and non-discrimination in all our activities, both internal and external.

4.1. Transparency

We are committed to openness, transparency and honesty about ourselves. We communicate actively to stakeholders about ourselves and make relevant information publicly available.

4.2. Confidentiality

We will treat information obtained while working with AIESEC with confidentiality, when its nature calls for it or when it is explicitly requested and will not use any such information or materials to further a private interest. This obligation continues after separation from AIESEC. We will be as open as possible about all decisions and actions we take, taking into account the above-mentioned needs for confidentiality. Each member is also under the obligation to strictly adhere to the Data Protection Principles as updated and amended from time to time.

5. Governance and professional management

We manage our organizations in a professional and effective manner. Our policies and procedures seek to promote excellence in all respects. We should be held responsible and accountable for our actions and achievements. We will do this by: having a clear organizational structure and decision-making processes; acting in accordance with stated values and agreed procedures; and reporting on these outcomes in an open and accurate manner. The governance structure of each AIESEC entity will conform to relevant laws and be transparent. We seek to follow principles of best practice in governance.

5.1. Governance of AIESEC Entity

5.1.1. Each AIESEC Entity ensures that resources are used efficiently and appropriately, that performance is measured, that financial integrity is assured and that public trust is maintained.

5.1.2. Each AIESEC Entity has written procedures covering the appointment, responsibilities and terms of members of the leadership team, and clear discharge mechanisms are in place

5.1.3. Each AIESEC entity will have a supervisory body that gives input and advice, and also monitors the activities and finances, using their professional experience for the growth and development of the association.

5.1.4. Each AIESEC Entity shall respect the existence of other AIESEC Entities, and refrain from expanding its Governance, Professional Relations, and/or Business in the regions of other existing AIESEC Entities, without a formal consent of the involved Entities and AIESEC in India MC.

5.1.5. Clearances

5.1.5.1. Entities may request ethics clearance for multiple candidates at once for positions such as Chair/Returning Officer for Local, National Conferences, Annual Elections Meetings, Annual General Meetings, Local Training Seminars, or any other forums before 14 days. If the ESC cannot provide clearance for any of the requested individuals, the entity will be notified accordingly. The final clearance letter must be secured at least 7 days before the forum excluding

the day of the forum. The ESC shall respond to the request within 72 hours. The ESC shall send an extension mailer in the case of the Clearance letter to be provided later than the first deadline. The extension would be for a maximum of 72 hours post the first deadline.

5.1.5.2. For ethics clearance letters, the applicant should send an official mail to ESC stating their current role and the role they are applying for cc'ing the Entity Head of the home entity.

5.1.5.3. Upon receiving a clearance request, the ESC must promptly forward it to the Internal Committee (IC) for evaluation. If the IC grants clearance, the candidate is deemed eligible for clearance.

5.1.5.4. The ESC must ensure that the candidate is ethically cleared before granting clearance.

5.1.5.5. In **cases of an ongoing investigation**, the **ESC shall grant clearance in accordance with the principle of "Innocent until proven guilty" as per the law.**

5.1.5.6. The clearance of the Chair / Returning officer shouldn't be carried over from the previous AIESEC forum. For each new forum, a new Ethics Clearance letter of the Chair/Returning officer should be asked for.

5.1.5.7. Each AIESEC Entity shall ensure to submit the undertaking from the Chair and Returning Officer of Annual General Meeting and Annual Elections Meeting. The Undertaking is to be submitted to ESC 3 days prior to the forum.

5.2. Reporting

5.2.1. The ESC **shall create a report and present it to the Focus Commission in January vNLM and NLM and July vNLM and NLM** (Subject to Conference and vNLM and NLM timelines).

5.2.2. The **ESC shall report on the ethical state** of AIESEC in India based on the flagging system according to Clause 21.

5.3. Audit

5.3.1. Financial controls

Internal financial control procedures ensure that **all funds are effectively used and minimize the risk of funds being misused.** We shall follow principles of best practice in financial management.

No payment on behalf of AIESEC (including those by cash) may be **done without adequate supporting documentation or authorization** or made with the intention or understanding that any part of such payment is to be used for any purpose other than as described by the documents supporting the payment.

5.3.2. Evaluation

We seek continuously to improve our effectiveness. We have defined evaluation procedures for our boards, staff, programs and projects on the basis of mutual accountability.

6. Human Resources

We recognize that our performance and success reflect the quality of our members, volunteers and management practices, and we are committed to investing in human resource development. Remuneration and benefits should strike a balance between public expectations of volunteer-based, not-for-profit organization and the need to attract and retain the talent we need to fulfil our mission. Our human resources policies seek to conform fully to relevant international and national labour regulations and apply the best voluntary sector practices in terms of employee and volunteer rights, health and safety at work. Human resources policies will include procedures for evaluating the performance of all members on a regular basis. All members are required to **strictly adhere to the E_HR Policy** (or by any other name called) as updated in the last legislative meeting.

7. Bribery and Corruption

Human resources policies will specifically **prohibit acts of bribery or corruption** whether directly or indirectly by members or other persons working for, or on behalf of, the organization.

8. Respect for human dignity and Integrity

We condemn sexual exploitation, abuse and discrimination in all its forms. Our policies will respect human dignity and integrity in all our programs and activities, and prohibit gender harassment, sexual exploitation and discrimination. Sexual harassment is any conduct that threatens, intimidates, or coerces another person. Keep in mind that harassment can be sexual or non-sexual in nature. **Any form of harassment goes against our goal of maintaining a respectful workplace. Regardless of whether harassment is committed by a coworker, a manager, or a customer or other non- associate,** it is never tolerated by AIESEC. If a member has been a target of harassment, or if you know of a situation involving another person, the same should be reported immediately to the IC.

9. Conflict of Interest

In our work, conflict may arise between our personal interests and the interests of AIESEC or other stakeholders. We will **disclose such conflict and resolve it in a transparent manner.** We will disclose such conflict and resolve it in a transparent manner.

A conflict of interest situation **arises when the “private interests” of the member competes or conflicts with the interests of AIESEC.** “Private interests” means both the financial and personal interests of the members or those of their connections including: family members and other close affiliates; personal friends; the clubs and societies to which they belong; and any person to whom they owe a favor or are obligated in any way.

Members should avoid using their official position or any information made available to them in the course of their duties to benefit themselves, their affiliates or any other persons with whom they have personal or social ties. They should avoid putting themselves in a position that may lead to an actual or perceived conflict of interest with AIESEC.

9.1. Private activities

We will not engage in any activity or transactions or acquire any position or function, whether paid or unpaid, that is incompatible with or detracts from the proper performance of our duties, if that may negatively impact AIESEC’s image. We will **not use AIESEC business relationships to solicit or obtain favours or improper benefits in private life.**

10. Non-preferential treatment

We will consider **only objective criteria when recruiting our members without preference for family and friends;** recruitment procedures will follow fairness principles.

11. Usage of resources

We will use AIESEC resources and properties effectively, for no purpose other than for the advancement of AIESEC objectives.

12. Compliance with the Code

It is the responsibility of every member to understand and comply with the Code of Ethics. Every member shall sign a Membership Undertaking which states the above information. This shall be submitted to the designated committee/member of AIESEC.

13. Compliance with other directives of AIESEC

All members at all times shall be required to be compliant with other directives/policies/compendiums/instruction documents (or by any name called) issued and amended by the management from time to time.

14. Laws of the Land

14.1. AIESEC is registered in India as a society under the Societies Registration Act XX1 of 1860 with registration number 45624 of 2003.

14.2. Cases that are in the nature of criminal act or sexual harassment will be subject to the Laws of India.

15. Ethics Sub Committee

15.1. Appointment

15.1.1. The Committee shall comprise of the MCP, MC ESC Responsible, the ESC Chair and ESC Members.

15.1.2. The term of the MCP and MC ESC Responsible in the ESC will be from July - June of the subsequent year; subject to change with MC timelines.

15.1.3. The term of Ethics Sub Committee Chair and Members will begin post-January Legislative Meeting till the end of the succeeding year's January Legislative Meeting.

15.1.4. All members of the Committee need to sign a Non-Disclosure Agreement (NDA) as soon as they are appointed on the role, and send it to esc@aiesec.in. The same can be found [here](#).

15.2. Responsibilities of ESC

15.2.1. Receiving, reviewing, investigating and resolving concerns and reports on the matters described in this Code.

15.2.2. Take suo-moto action in the event there has been an act or omission of an act which according to the ESC is including but not limited to non-compliant, unethical or not consistent with The AIESEC Way.

15.2.3. Interpreting and providing guidance on the meaning and application of this Code.

15.2.4. Reporting periodically and as matters arise to the FOCUS Commission of AIESEC in India on the implementation and effectiveness of this Code and other compliance matters, and recommending any updates or amendments to this Code as deemed necessary or advisable.

15.2.5. Offer guidance, mediation and consultation, as well as investigate ethical cases.

15.2.6. Ensure education and ownership around the Code of Ethics locally (case-studies - worst/good case), encourage internal dialogue on ethics and provide guidance for members.

15.2.7. Ensure that internal systems, policies and procedures are consistent with this Code.

15.2.8. Encourage implementation and compliance at a local level.

15.2.9. During Investigation:

15.2.9.1. The ESC shall give a response to all the cases registered

15.2.9.2. The ESC is responsible for investigating all the cases that are described in this booklet in a fair, unbiased manner and ensure complete fact-finding and maintain strict confidentiality.

15.2.9.3. The investigator for a case shall audit the case and submit a report to the Ethics Sub Committee.

15.2.9.4. In situations where a case involves a member from the ESC, this member shall be disallowed from participation and shall be denied access to any information during the investigation process and will play no role in decision making. The rest of the body will continue to play a part in the process.

15.2.9.5. The ESC shall recommend an appropriate course of action - suggested disciplinary action, including dismissal, and preventive measures and record ESC's deliberations and document the final report.

15.2.10. Post investigation:

15.2.10.1. Role of ESC post investigation is to give either a verdict and/or a recommendation based on the specific case.

15.2.10.2 In case of an Extraordinary Scenario ESC can carry an Ethical Check in the entity

15.3. Procedure for solving Ethical issues

We must hold each other accountable to the observance of the Code of Ethics. When Entities or individual members are not abiding by the Code of Ethics, it is the ethical duty of those aware of the problem to report it.

15.3.1. If a problem (interpretation, application or suspected violation of the Code) occurs at the Local or National level, the following steps will be followed:

15.3.1.1. Find a solution within the Local/National team through discussion and mutual agreement. Each Local/National committee should have an Ethics' responsible (preferably the Entity Head or the SUD) and clear procedures in place to solve issues that occur at the Local/National level.

15.3.1.2. If they are not comfortable directly confronting members concerned or it is not possible or feasible, anybody aware of the problem can use the "whistleblowing" procedure.

15.3.1.3. The Ethics Sub Committee has the right to make the final decision on the case. The ESC shall be the body to analyse the case and can:

15.3.1.3.1. Forward the case to the Entity heads of the LC.

15.3.1.3.2. Solve the case and give recommendations to the National Plenary.

15.3.1.4. In both cases, the National Ethics Sub Committee shall:

15.3.1.4.1. Inform the parties involved of the case and solutions.

15.3.1.4.2. Track the implementation of the solutions/ recommendations given.

15.3.1.4.3. Once a complaint is received by the ESC, the ESC will summon the accused and defendant. The accused and defendant in any case should be acknowledging the mail within 72 hours.

15.3.1.5. The ESC is responsible to solve cases or provide recommendations to the National Plenary regarding violation of the Code of Ethics.

15.3.1.6. The ESC shall decide and dispose of the case within 3 months from the date of filing of the case until and unless an extension is provided from the MCP for any specific case.

15.3.1.6.1. The ESC will apply for the extension (if applicable) through an email to the MCP. The extension given at a time can be upto MCP's discretion.

15.3.1.6.2. Post the extension deadline if the case is not solved, a report will be sent out to the MCP specifying the reasons for the same, and the case will be closed as unsolved.

15.3.1.7. Throughout the process, it is essential that we respect the principle of differentiating the individual vs. the country, the action as unethical as opposed to the person/entity being unethical as well as preserving the confidentiality of the whistle-blower's identity if specifically requested.

15.3.2. Non Disclosure Agreement (NDA) -

15.3.2.1. Information related to any case is considered to be confidential and must not be shared with anyone.

15.3.2.2. Consequence of Breach:

15.3.2.2.1. Loss of alumni privileges

15.3.2.2.2. Ineligibility for letter of experience

15.3.2.2.3. The individual will be suspended from their current role for the duration of the investigation

15.3.2.2.4. The concerned individual may be put on probation upon discretion of ESC.

15.3.2.3. The Non Disclosure Agreement will be in effect even after completion of the case.

15.3.3. In case where a complaint is filed against the MCVP or Entity head,

15.3.3.1. The ESC chair shall send an official email to the MCP informing about the same.

15.3.3.2. Once the case is opened, the MCP shall become part of the investigation process.

15.4. Management of Cases:

15.4.1. All cases should be recorded for references and should be kept confidential by the ESC.

15.4.2. All the cases shall be stored on a drive folder under the email id esc@aiesec.in in chronological order.

15.4.3. The access to the drive and all the information stored rests only with the MC ESC Responsible, the current Ethics Sub Committee of AIESEC in India, and one in succession. The ID shall only be shared once the NDA has been formally signed.

15.5. Rights to Final Decision

15.5.1. The final decision will be taken through the mutual consent of ESC members.

15.5.2. The ESC shall ensure that the entire process of Whistleblowing is confidential, and no information shall be given out unless a final decision has been made.

15.5.3. The ESC shall manage and store all the cases on record for future reference, information and knowledge management.

15.5.4. In cases that involve MCVP or Entity Head, the MCP will have the final decision-making power.

15.6. Failure To Adhere To The Verdict Given By The ESC:

15.6.1. The verdict given by the ESC is final.

15.6.2. Post the verdict an appeal can be filed subject to the appeal guidelines.

15.6.3. The execution/carrying out of the verdict given by the ESC must be done in the next 10 days or in the specific time mentioned by the ESC.

15.6.4. If the verdict is not carried out/executed in the stipulated period, it will result in an automatic mandate fine of INR 5,000.

15.6.5. If the verdict is not carried out/executed in the additional 10 days following the stipulated period, it will result in a fine of INR 25,000.

15.6.6. These fines, if applicable, will be added to any financial consequence mentioned in the ESC verdict.

15.6.7. Failure to execute/carry out the verdict or denial to carry out/execute the verdict post the initial checks would amount to a probation being sent to the entity head for a period of 7 days. This would mention the required call to actions to be undertaken.

15.6.8. If the verdict is not followed through within the probation period, the entity head can be terminated by the MCP and the required procedures post the termination are to be followed based on the Entity Head Termination process as mentioned in Subdocument C Election and Selection process.

15.7. If the plaintiff or the defendant is not satisfied with the verdict given by the Ethics Sub Committee of AIESEC in India, they have a right to appeal against the verdict.

15.7.1. An appeal can only be filed once post the verdict is delivered.

15.7.2. An appeal can only be filed by the plaintiff or the defendant when a new piece of information/proof is being presented within 48 hours of the verdict being delivered.

15.7.3. The Ethics Sub Committee Chair shall appoint another member from the ESC to investigate the case. In the event where all members of the ESC are involved in the said case's solving, the appeal can be taken up by the ESC Chair/MCP/someone jointly appointed by the ESC Chair and MCP.

15.7.4. If the said terms of appointing an appeal reviewer are not possible then the ESC Chair can present the verdict to the Focus Commission at the next physical/virtual legislative meeting where the decision will be taken by the Focus.

15.7.5. The ESC Chair to present possible outcomes and the case proceedings to the Focus. Post consultation with the Focus Commission during the legislations using which a vote is called and a verdict is passed if any of the options receives a two-third majority.

15.7.6. In an event where the Focus Commission does not reach a two-thirds majority, the ESC & the MCP pass out the verdict taking due consideration of the discussions in the Legislative Meeting.

15.7.7. The decision to accept the appeal lies in the hands of the ESC Chair only.

16. Whistleblowing Mechanism

The whistleblowing mechanism empowers members to report misconduct, promotes a culture of integrity and ensures accountability. The Ethics Sub Committee is an independent body within the purview of AIESEC in India and is responsible for all cases filed by the whistle-blowers.

16.1. Objective:

16.1.1. Members feel safe and supported in reporting unethical practices

16.1.2. All complaints are investigated confidentially

16.2. Whistleblower Rights and Responsibilities

16.2.1. Rights:

16.2.1.1. Any member can act as a whistleblower and must disclose their identity to the ESC while filing the case

16.2.1.2. If the ESC breaches confidentiality, the responsible body will be terminated from its role.

16.2.1.3. Whistleblowers have the right to protection from retaliation (unless they are involved in wrongdoing).

16.2.2. Responsibilities:

16.2.2.1. Report with sufficient evidence and cause for concern

16.2.2.2. Act promptly to avoid loss of evidence

16.2.2.3. Follow prescribed procedures and timelines

16.2.2.4. Cooperate fully with investigators while maintaining confidentiality, adhering to the Non-Disclosure Agreement

16.3. Whistleblowing Procedure:

16.3.1. Awareness and Education:

16.3.1.1. Entity Heads must:

16.3.1.1.1. Educate members at every Local Training Seminar (LTS) and during onboarding post-pocket recruitments.

16.3.1.1.2. Submit proof of this awareness initiative to ESC within 14 days of the LTS.

16.3.1.1.3. Ensure whistleblowers are not victimized.

16.3.2. The whistleblower must report the unethical practice via mail at esc@aiesec.in with adequate proof of the claim.

16.3.2.1. Lack of valid proof may result in case closure

16.3.3. A case is registered only upon ESC approval

16.3.3.1. Proofs must be submitted within 72 hours of confirmation

16.3.4. All associated parties must adhere to the Non-Disclosure Agreement

16.3.5. Investigation Process:

16.3.5.1. ESC verifies authenticity of proofs and the basis of the case

16.3.5.2. ESC may interview relevant persons

16.3.5.3. Determine whether case falls within ESC scope

16.3.5.3.1. If the case does not fall under ESC's scope, the respective entity head will take forward the case and a report regarding the same must be sent to ESC within 48 hours of closing the case. An ESC member will be allotted to overlook the case.

16.3.6. All complaints must be confidentially documented for future reference.

17. Nature of Cases

17.1. Cases Relating to Exchanges and Market Breach

17.1.1. Market Breach

17.1.1.1. Entities and Expansions cannot enter into market areas that are not allotted to them.

17.1.1.2. If there is an issue of Market Breach, the matter should be resolved between both entities by reaching a mutual agreement through the Entity Heads.

17.1.1.3. If a mutual agreement cannot be reached, the ESC will investigate and consult OPSC if necessary and hence, decide on a common verdict, and give out necessary recommendations.

17.1.1.4. A mail needs to be sent to ESC to resolve or investigate the market breach with necessary details and proofs.

17.1.1.5. Implications:

The Market Breach once confirmed by the OPSC shall have the following consequences:

17.1.1.5.1. First Market Breach in an LC: The Entity shall shift the Approval or Member and/or stop Marketing Activities

17.1.1.5.2. Second and all additional Market Breach in the last 12 Months: Every approval from a market not designated to the Entity will be considered equivalent to a fabricated exchange and will attract the same consequences. In the case of a member being recruited from a market not designated to the LC/marketing and attraction material being circulated, the entity shall be flagged yellow for every subsequent approval/member/piece of marketing and attraction material being circulated.

17.1.2. Illegal Opportunity Auditing

17.1.2.1. Implications:

Any Entity that raises an opportunity on the official portal without following the auditing procedures and guidelines set by the MC and ECB will be flagged yellow on every Illegal Opportunity.

17.1.3. Fake Exchanges

17.1.3.1. Any entity involved in “fake” exchanges shall have the implications as mentioned in the APIP.

17.1.3.2. For any cases of fake exchanges that come to ESC, the cases will be passed on to ECB and the ESC will provide suggestions for the case if and when necessary.

17.1.4. Cases involving AIESEC Interns

17.1.4.1. Cases that involve AIESEC Interns will first be passed on to the ECB. Only if the ECB feels that the case is beyond its purview, then the ESC will take over the investigation.

17.2. Cases Violating Financial and Legal Regulation

If the ESC receives a case financial in nature, the FSC shall automatically be appointed as the investigative body and hold full accountability for resolving the case. The FSC will lead the investigation and is responsible to keep the ESC in complete awareness of the proceedings. After validation of proofs by the ESC and FSC, the defendant will be suspended from their role for the duration of the investigation. The types of cases which come under Financial and Legal Regulation are:

17.2.1. Embezzlement of Money

17.2.1.1. Implications:

If found guilty, the wrongdoer shall have to pay to the Entity/ Member Committee the amount of money involved in the wrongdoing, in addition to getting dismissed from the organisation.

17.2.2. Tampering of Data or Entity Assets

17.2.2.1. Hiding of information of Bank/Cash flow of the LC, any other relevant financial data or the assets of the Entity by any member in the Entity including the Entity Head or LCVP F&L.

17.2.2.2. Implications:

In case of wrongdoing being proved, the individual shall be immediately dismissed from the organization.

17.2.3. Forging Signatures

17.2.3.1. Implications:

In case of wrongdoing being proved, the individual shall be immediately dismissed from the organization.

17.3. Cases Regarding Voting Processes and Election Management

17.3.1. Cases such as a discrepancy in any voting process and/or miscarriage of Entity Head or MCP Election process will be directly handled by the ESC. However, the Whistleblowing Mechanism shall allow anyone to report in such circumstances.

17.3.2. Implications:

17.3.2.1. After validation of proofs by the ESC, the defendant will be suspended from their role for the duration of the investigation.

17.3.2.2. In case of miscarriage of the voting/election process, the wrongdoer shall be immediately dismissed. Any person connected with the wrongdoer (in the wrongdoing) shall also be dismissed from the organization.

17.3.2.3. The voting process of the forum in which the discrepancies is found, will have to be undertaken by the LC/MC again within a stipulated period as determined by the ESC in the verdict. An ESC responsible as appointed by the ESC Chair and/or the MCP will be present in the forum to maintain the legitimacy of the voting process.

17.4. Cases Violating HR Policy

17.4.1. Wrongful Termination

17.4.1.1. Any cases of wrongful termination need to be implied from the HR policy.

17.4.1.2. This also will include if a member is terminated for having filed a complaint to the Ethics Sub Committee.

17.4.1.3. Implications:

17.4.1.3.1. If an Entity is found to have wrongfully terminated a member, the Entity will have to reinstate membership of the member or provide them with a Letter of Experience as agreed upon by the plaintiff and ESC.

17.4.1.3.2. If more than 2 cases in a semester arises, the Entity Head will have to ensure that HR Policy education is carried out in an Entity Forum and the proofs for the same to be sent to the ESC within the stipulated time as mentioned in the ESC's verdict.

17.4.2. Provision of Letter of Experience/Alumni Rights

17.4.2.1. Letters of Experience and Alumni Rights can only be provided to those eligible under the HR Policy Sub Document.

17.4.2.2. In a situation where the aforementioned are not provided to eligible candidates, such cases need to be implied from the HR Policy.

17.4.2.3. Implications:

If an Entity is found to not have followed due diligence, the Entity shall provide the Letter of Experience and/or Alumni Rights to the plaintiff.

17.5. Cases Violating Laws of the Land

Cases of Criminal Offence or those violating the Laws of the Land (like Physical Violence, abduction or kidnapping, threat given to the health of a person, etc.) against a member of AIESEC or any stakeholder including Exchange Participants coming to India and employees of companies or organizations that we work with.

17.5.1. Implications:

17.5.1.1. After validation of proofs by the ESC, the defendant will be suspended from their role for the duration of the investigation.

17.5.1.2. In case of wrongdoing being proved, the individual shall be immediately dismissed from the organization.

17.5.1.3. The decision as to whether the case should be reported to the police or judicial system of the country lies with the plaintiff, with support from the ESC.

17.6. Cases Regarding Sexual Misconduct

17.6.1. Any sexual misconduct will be under the purview of the Internal Committee of AIESEC in India. To seek redressal or clarifications - members of AIESEC in India can contact them at internalcommittee@aiesec.in

17.7. Unique Cases

17.7.1. Apart from the cases categorized above in the document, the Ethics Sub Committee shall ensure call-to-action for any case reported to it.

17.8. Fake Cases

17.8.1. If a person is found guilty of putting a fake case, the member will be terminated from the organisation immediately.

17.9. Multiple Cases

17.9.1. In a situation where there are multiple cases from representatives of an LC, it will trigger investigation of the LC's culture which will be led by ESC, MCP and MCVP PM.

18. Defining Implications

18.1. Suspension

18.1.1. Suspension of the individual would mean debarring them from the role/position held only after valid proof has been submitted and it has been verified by the Ethics Sub Committee.

18.1.2. The Suspension shall end with the completion of investigation against the individual.

18.1.3. Cases that have been verified against MC VP or Entity Head, the MCP will issue the suspension mail.

18.1.4. In situations where the case involves a complaint against MCP and the complaint and proof has been verified by the Ethics Sub Committee, the MCP will be suspended from office and the MCVP F&L shall discharge all roles of the MCP during the period of investigation.

18.1.5. If MCVP F&L is involved in a case along with MCP, and if the proof and case has been verified, both of them will be suspended from office.

18.1.6. The role of the MCP shall be discharged by an MCVP who is appointed based on the vote of confidence by the Focus Commission.

18.2. Dismissal

18.2.1. Dismissal of the individual would mean expulsion from the organization.

18.2.2. In case of wrongdoing being proved, the individual shall be immediately dismissed from the organization.

18.2.3. In cases where MCVP or Entity Head have been proved of wrongdoing, the MCP will issue the dismissal mail.

18.2.4. The MCP of AIESEC in India, if and when proved guilty of wrongdoing, shall undergo an impeachment process according to the compendium of AIESEC in India.

18.3. Lost Cases

18.3.1. In the case an entity loses an ethics case, in addition to the repercussions as per verdict, the entity's ethical state shall be flagged as RED

18.4. The implications shall not be limited to the aforementioned and can vary case to case upon the verdict/recommendation passed by the ESC.

18.5. Any financial consequence including mandated fines levied by the ESC post the deadline of the execution of the verdict will immediately count as MC-Entity/Entity-EntityDues. The ESC must report to the MSC and MCVP F&L on the dues as a part of the verdict on any Entity or the MC. The same is to be checked and made part of the MC-Entity/Entity-Entity dues check that is conducted by the MSC.

19. Statute of Limitations

Statutes of limitations are laws passed by legislative bodies in common law systems to set the maximum time after an event within which legal proceedings may be initiated.

When the period of time specified in a statute of limitations passes, a claim might no longer be filed, or, if filed, may be liable to be struck out if the defence against that claim is, or includes, that the claim is time-barred as having been filed after the statutory limitations period. When a statute of limitations expires in an ethical case, the ESC no longer have further investigation.

19.1. The statute of limitations i.e. the maximum time limit to file an ethical case against any unethical activity will be in the next 365 days from the exact date, unethical activity took place.

20. Role of Ethics Counsellor:

20.1. Ethics Counsellor

20.1.1. The ethics counsellor will act as a consultant to the ESC and the MC with the intention of reviewing ethics cases and case solving procedure to ensure the organisation does not face any PR risks and to advise on the robustness of the case solving mechanism

20.2. Purpose of Ethics Counsellor:

20.2.1. To identify and advise on scope of improvement in AIESEC India's ethics case solving mechanism

20.2.2. To identify organisational risks due to ethics cases and means to mitigate those risks

20.2.3. Recommendations to the MC and the Ethics Sub Committee.

20.3. Scope of Ethics Counsellor's Work:

20.3.1. Reviewing cases registered with the ESC at the end of every semester

20.3.2. Identifying bottlenecks in case solving mechanisms

20.3.3. To assess the reliability of case solving procedures followed by the ESC, by reviewing documentation.

20.4. Selection Process:

20.4.1. The entire selection process is headed by the current Ethics Counsellor barring the first selection which is done by the MC

20.4.2. Selection Process for the Ethics Counsellor consists of 2 steps:

20.4.2.1. Nomination process by Current Counsellor after consulting the MC

20.4.2.2. Voting and selection

20.4.3. Nomination Process

20.4.3.1. Nomination for the Ethics Counsellor will be undertaken by two bodies.

20.4.3.1.1. Ethics Counsellor

20.4.3.1.2. Member Committee of AIESEC India

20.4.4. Voting and Selection

20.4.4.1. Post the nomination process, the selection of the Ethics Counsellor is to be conducted by a round of votes. 3 votes are taken into consideration from the panel in the following composition:

20.4.4.1.1. Ethics Counsellor

20.4.4.1.2. MC

20.4.4.1.3. Focus Commission

21. Procedure for Reporting the Ethical State of AIESEC in India

21.1. The Ethics Subcommittee is responsible for reporting and maintaining the ethical state of AIESEC in India, ensuring that the environment across all entities remains stable and safe.

21.2. The ESC shall use a *Flagging System* to evaluate and report the ethical state of each entity.

21.2.1. The Flagging System assigns one of the following indicative states to each entity:

21.2.1.1. **Green** Flag - Indicates a **sound** ethical state.

21.2.1.2. **Yellow** Flag - Indicates a **risky** ethical state.

21.2.1.3. **Red** Flag - Indicates an **alarming** ethical state.

21.2.2. The validity of all flags shall be from NLS to NLS, and all flags will be reset post NLS.

21.2.3. An entity shall be flagged Red under any of the following circumstances:

21.2.3.1. Losing an ethics case with ESC as an entity.

21.2.4. An entity shall be flagged Yellow under any of the following circumstances:

21.2.4.1. Having an open ethics case with ESC.

21.2.4.2. Failing to submit Internal & Financial Policies for review within the defined timelines, and failing to submit proof of downscaling of the same within the stipulated post-forum timeline.

21.2.4.3. Failing to procure clearance letters for Chair/RO/Alumni for AGM & AEM within the defined timelines.

21.2.4.4. Failing to fulfil the LTS Check, i.e., not submitting proof of downscaling of the Code of Ethics within the defined time period.

21.2.4.5. Attempting to violate the Exit Process as per SubDocument E_HR Policy, Clause 6.

21.2.4.6. Not following ESC recommendations for a specific case.

21.2.4.7. Breach of Subdocument E_HR Policy 2.3.1 – i.e., recruiting or selecting any person who is not between 18-25 years of age or not a student/recent graduate.

21.2.4.8. Raising opportunities on the official portal without following the auditing procedures and guidelines set by the MC and ECB (each illegal opportunity = one yellow flag).

21.2.4.9. Engaging in a second or subsequent Market Breach within a 12-month period (each additional breach = one yellow flag).

21.3. Flagging shall be done by the ESC as and when the situation arises.

21.4. The ESC shall provide a report on the ethical state of all entities within 14 days following every NLM and shall communicate the same individually via email to each entity.

21.5. Repercussions

21.5.1. Accumulation of 3 Yellow Flags shall result in a Red Flag.

21.5.2. If an entity loses an ethics case, it shall automatically receive a Red Flag in addition to any repercussions defined in the case verdict.

21.5.3. After receiving a Red Flag, if an entity accumulates 2 additional Yellow Flags, it shall result in another Red Flag.

21.5.4. Accumulation of 2 Red Flags between NLS to NLS within a 1 year period shall lead to the entity losing its voting rights until the immediate next legislative forum.

21.6. Based on the flagging status, the ESC may issue recommendations or corrective measures that the entity shall be required to follow.

21.7. The criteria mentioned under Clause 21.2.1 shall be non-mandateable and serve as indicative guidelines.